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March 6, 2025

SENATE BILL NO. 160

By: Weaver

An Act relating to construction industries; amending 59 O.S. 2021, Sections 1000.20, 1000.21, 1000.23, and 1000.25, which relate to the Oklahoma Uniform Building Code Commission Act; updating statutory references; modifying certain membership requirements; modifying certain training; modifying certain powers and duties of Commission; authorizing assessment of certain fees; directing deposit of fees; requiring establishment of certain plan; requiring promulgation of rules; providing for electronic submission of certain report; updating statutory references; updating statutory language; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 59 O.S. 2021, Section 1000.20, is amended to read as follows:

Section 1000.20. Sections 1000.20 through ~~1000.29~~ 1000.30 of this title shall be known and may be cited as the "Oklahoma Uniform Building Code Commission Act".

SECTION 2. AMENDATORY 59 O.S. 2021, Section 1000.21, is amended to read as follows:

Section 1000.21. A. 1. There is hereby created the Oklahoma
Uniform Building Code Commission ~~within the Construction Industries~~

1 ~~Board~~ which shall consist of thirteen (13) members, eleven of whom
2 shall be appointed by the Governor with the advice and consent of
3 the Senate as follows:

- 4 a. one member who is a general contractor from a
5 statewide organization that represents residential
6 construction,
- 7 b. one member who is a general contractor from a
8 statewide organization that represents commercial
9 construction,
- 10 c. one member who is a contractor from a statewide
11 organization that represents electrical contractors,
- 12 d. one member who is a contractor from a statewide
13 organization that represents plumbing contractors,
- 14 e. one member who is a contractor from a statewide
15 organization that represents heating and cooling
16 contractors,
- 17 f. one member who is a licensed electrical engineer from
18 a state-recognized professional engineering firm,
- 19 g. one member who is a local-level regulator/inspector
20 who is a member of a statewide organization that is
21 exempt from taxation under federal law and designated
22 pursuant to the provisions of the Internal Revenue
23 Code of 1986, as amended, 26 U.S.C., Section 170(a),
24 who has represented municipalities and had statutory

1 functions for municipalities for at least ~~fifteen (15)~~
2 ~~years prior to November 1, 2005~~ ten (10) years,

3 h. one member who is a ~~Certified Building Official~~
4 certified building official employed by a political
5 subdivision,

6 i. one member who is a licensed architect from a
7 statewide organization that represents architects,

8 j. one member who is from the insurance industry with
9 knowledge of building codes and experience in property
10 loss mitigation, and

11 k. one member who is a licensed mechanical engineer from
12 a state-recognized professional engineering firm.

13 2. The members shall be appointed for staggered terms of four
14 (4) years. ~~The initial appointment of the members added by this act~~
15 ~~shall be made within ninety (90) days of the effective date of this~~
16 ~~act.~~ A full term of office for purposes of determining term limits
17 provided in subsection C of this section shall be the completion of
18 a full four-year term of appointment.

19 B. The remaining two members of the Commission shall be the
20 State Fire Marshal, or a designee, and an appointee of the
21 Construction Industries Board.

22 C. Appointed members shall continue in office until a successor
23 is appointed by the Governor, notwithstanding the term limitations.
24 No appointed member shall serve more than two consecutive full four-

1 year terms; provided, such a member shall be eligible to serve until
2 a successor is appointed, and such member may be reappointed after a
3 two-year absence from the Commission. The Governor shall fill all
4 vacancies and unexpired terms in the same manner as the original
5 appointment of the member whose position is to be filled. No
6 initial appointment to a term of less than four (4) years or any
7 partial-term appointment to fill a vacancy or unexpired term of
8 another member shall be counted for purposes of determining term
9 limits. An appointed member may be removed by the Governor for
10 cause.

11 D. Whenever a member of the Commission is absent from more than
12 one-half (1/2) of all meetings of the governing body, regular and
13 special, held within any period of twelve (12) consecutive months,
14 the member shall thereupon cease to hold office by operation of law.

15 SECTION 3. AMENDATORY 59 O.S. 2021, Section 1000.23, is
16 amended to read as follows:

17 Section 1000.23. A. The Oklahoma Uniform Building Code
18 Commission shall have the power and the duty to review and adopt all
19 ~~building~~ codes and standards for residential and commercial
20 construction to be used by all entities within this state. Codes
21 and standards adopted by the Commission shall be the minimum
22 standards for residential and commercial construction in this state.

23 B. All public projects shall abide by such minimum standards
24 and requirements; provided, nothing in the Oklahoma Uniform Building

1 Code Commission Act shall prevent or take away from state agencies
2 the authority to enact and enforce requirements containing higher
3 standards and requirements than such minimum standards and
4 requirements.

5 C. Municipalities and other political subdivisions shall abide
6 by such minimum standards and requirements; provided, nothing in the
7 Oklahoma Uniform Building Code Commission Act shall prevent or take
8 away from such municipalities and other political subdivisions the
9 authority to enact and enforce requirements containing higher
10 standards and requirements than such minimum standards and
11 requirements.

12 D. The Oklahoma Uniform Building Code Commission shall have the
13 power and duty to establish a continuing education training and
14 certification process for all residential and commercial ~~building~~
15 construction industry personnel affected by the codes adopted by the
16 Commission including, but not limited to, code inspectors. ~~The~~
17 ~~Commission shall establish regional training for the purpose of~~
18 ~~training the county and municipal inspectors in the Uniform Building~~
19 ~~Code~~ officials, design professionals, and trades workers. The
20 regional training shall be offered at no cost to ~~the participant~~
21 state-licensed building code officials and shall be funded from the
22 funds received pursuant to Section 1000.25 of this title. A fee may
23 be assessed to all participants other than state-licensed building
24 code officials. When assessed, the fee shall be limited to any cost

1 directly associated with the training and shall be remitted to the
2 State Treasury pursuant to the Oklahoma Uniform Building Code
3 Commission Act. Such fees shall be deposited in the Oklahoma
4 Uniform Building Code Commission Revolving Fund and shall be used
5 solely for the purposes of the Oklahoma Uniform Building Code
6 Commission Act. Each ~~inspector~~ code official operating in this
7 state on behalf of any state agency or any municipal or county
8 office may complete regional training and be issued a ~~certification~~
9 ~~for inspections~~ certificate of completion by the Oklahoma Uniform
10 Building Code Commission ~~on and after January 1, 2015.~~ The training
11 and certification applications, qualifications and procedures shall
12 be promulgated by rules of the Commission. The Commission may
13 establish forms and procedures to implement and administer the
14 provisions of this section.

15 E. The Commission shall establish a workforce development plan
16 for the purpose of increasing the number of available code officials
17 in this state. The Commission shall promulgate rules on the
18 workforce development applications, qualifications, forms, and
19 procedures to implement and administer the provisions of this
20 section.

21 SECTION 4. AMENDATORY 59 O.S. 2021, Section 1000.25, is
22 amended to read as follows:

23 Section 1000.25. A. The Oklahoma Uniform Building Code
24 Commission shall establish a system of fees to be charged for the

1 issuance and renewal of any construction permits issued by any
2 agency, municipality, or other political subdivision of this state.

3 B. This provision is subject to the following limitations:

4 1. No schedule of fees may be established or amended by the
5 Commission except during such times as the Legislature is in
6 session; provided, the Commission may establish or amend a schedule
7 of fees at a time when the Legislature is not in session if the fees
8 or schedule of fees has been specifically authorized by the
9 Legislature pursuant to paragraphs ~~2 and 3~~ and 4 of this subsection.
10 The Commission must follow the procedures required by Article I of
11 the Administrative Procedures Act for adoption of rules in
12 establishing or amending any such schedule of fees;

13 2. The Commission shall charge fees for ~~building~~ construction
14 permits and renewal of such permits issued by any state agency,
15 municipality, or other political subdivision of this state which
16 authorized work governed by codes within the purview of the
17 Commission only within the following ranges:

18 a. ~~For~~ for issuance of permit not to exceed \$5.00, and

19 b. ~~For~~ for renewal of permit not to exceed \$5.00;

20 3. Fees shall be remitted to the Oklahoma Uniform Building Code
21 Commission within thirty (30) days after the end of the preceding
22 calendar month. The Oklahoma Uniform Building Code Commission shall
23 report electronically to the Governor, President Pro Tempore of the
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1 Senate and the Speaker of the House semiannually its collections for
2 the six (6) months preceding the report;

3 ~~3.~~ 4. Fees shall be collected by any state agency, municipality
4 or other political subdivision issuing construction permits within
5 this state. The fees shall be deposited in an account created by
6 the collecting entity for that purpose;

7 ~~4.~~ 5. The state agency, municipality or other political
8 subdivision shall remit the monies in the account on a monthly basis
9 directly to the State Treasury for deposit in the Oklahoma Uniform
10 Building Code Commission Revolving Fund created pursuant to Section
11 1000.28 of this title. Along with the deposits required by this
12 paragraph, each state agency, municipality or other political
13 subdivision shall also submit a report stating the total amount of
14 funds collected and the total number of fees imposed during the
15 preceding month. The report shall be made on computerized or manual
16 disposition reports as provided by rule of the Commission;

17 ~~5.~~ 6. Any state agency, municipality or other political
18 subdivision collecting and remitting fees pursuant to this section
19 may levy a fee up to fifty cents (\$0.50) for every construction
20 permit or renewal permit issued. These monies shall be deposited
21 into an account for the sole use of the state agency, municipality
22 or other political subdivision. The state agency, municipality or
23 other political subdivision shall state the total amount of funds
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1 collected and the total number of fees imposed to the State Treasury
2 in the report required by paragraph 4 5 of this subsection;

3 ~~6.~~ 7. It shall be the responsibility of the state agency,
4 municipality or other political subdivision to account for and
5 ensure the correctness and accuracy of payments made to the State
6 Treasury pursuant to this title;

7 ~~7.~~ 8. Funds collected by a state agency, municipality or other
8 political subdivision and remitted to the State Treasury pursuant to
9 the Oklahoma Uniform Building Code Commission Act shall be deposited
10 in the Oklahoma Uniform Building Code Commission Revolving Fund and
11 shall be used solely for the purposes of the Oklahoma Uniform
12 Building Code Commission Act; and

13 ~~8.~~ 9. Nothing in ~~this act~~ the Oklahoma Uniform Building Code
14 Commission Act shall prevent the Oklahoma Uniform Building Code
15 Commission from offering incentives for prompt payment.

16 SECTION 5. This act shall become effective November 1, 2025.

17 COMMITTEE REPORT BY: COMMITTEE ON BUSINESS AND INSURANCE
18 March 6, 2025 - DO PASS
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